

# PUBLIC SUBMISSION

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**Docket:** NSF\_FRDOC\_0001

Recently Posted NSF Rules and Notices.

**Comment On:** NSF\_FRDOC\_0001-3479

Request for Information: Development of an Artificial Intelligence Action Plan

**Document:** NSF\_FRDOC\_0001-DRAFT-4172

Comment on FR Doc # 2025-02305

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## Submitter Information

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## General Comment

The AI systems made by tech companies like OpenAI or Google will, with their recent demand to create special carve outs in copyright law, destroy thousands of American small businesses and ruin the ability for American artists to continue to succeed.

AI systems rely on training on work made by people. My unique work, and the work of every other everyday American creator who has posted works - written, visual, audio, or otherwise - was taken and fed into these AI systems without our consent or compensation. They ingest our work, reassemble it, and then sell it back to our clients – directly competing and cutting us out.

Now these tech companies are asking for exceptions and loopholes to make this practice of stealing American creators' copyrighted work legal precedent. They are suggesting that if a machine ingests and reproduces copyrighted work, it is somehow suddenly "fair use". Their belief that anything and everything on the internet – regardless of who owns it – should be theirs for the taking. They claim that if they are not allowed to, it will stifle American innovation.

It will have the opposite effect; the purpose of American copyright law is to protect the incentive to create and innovate. If individuals do not own our creations, and everything we put online will be stolen by tech giants, what will be the incentive to create?

If everyday Americans create a new innovative piece of computer code, a new visual design, or a new piece of music only to have it immediately stolen by Google and Microsoft, why bother creating it in the first place? How will we possibly make a living doing these things?

Protect American creators to protect American innovation. Do not create new copyright exemptions that allow tech companies to exploit and steal from creators and everyday Americans without permission, compensation, or transparency. This administration's AI Action Plan should focus not on giving away creator content to tech companies. The government should ensure that creators and everyday Americans give effective consent, so that we can decide when and where our work is used by AI systems. The plan should encourage a robust licensing marketplace, so that the incentive to create for small businesses is preserved. Our work has immense economic value, so the value generated by that work should accrue to the original creators, not just tech companies. Finally, the AI Action Plan should require transparency from tech companies, requiring them to disclose what material is in their training datasets, and label AI generated content clearly.

I am not anti-technology or anti-AI - I work in tech and rely on it for my creative processes. I am consistently impressed by the capabilities of many AI systems, but we should not sacrifice the hard work of thousands of Americans and give it away to tech companies by rewriting copyright law in this manner.